Calendar Line 6

Case Name: *Fihussein Elie v. General Motors LLC*
Case No.: 25CV477314

Before the Court is Defendant General Motors LLC's ("Defendant" or "GM") motion to strike portions of the Complaint filed by Plaintiff Fihussein Elie ("Plaintiff").

This is a lemon law action. According to the allegations of the Complaint, on January 15, 2024, Plaintiff entered into a warranty contract with GM regarding a 2024 Chevrolet Corvette (Complaint, ¶ 6), and that "[d]efects and nonconformities to warranty manifested themselves within the applicable express warranty period, including but not limited to, engine defects, transmission defects, electrical defects; among other defects and nonconformities" (*id*. at ¶ 11). Plaintiff alleges that he requested a buyback on August 28, 2025, but Defendant failed to provide restitution as required under the Song-Beverly Consumer Warranty Act ("Song-Beverly"). (*Id*., ¶ 24.)

Based on the foregoing, Plaintiff initiated this action on October 10, 2025, asserting claims for: (1) violation of Civil Code § 1793.2, subd. (d); (2) violation of Civil Code § 1793.2, subd. (b); (3) violation of Civil Code § 1793.2, subd. (a)(3); (4) breach of the implied warranty of merchantability; and (5) fraudulent inducement-concealment. On January 16, 2026, Defendant filed the instant motion to strike the following portions of the Complaint: ¶¶ 29-31, 36, 39 and subdivision (f) of the Prayer. Plaintiff opposes the motion.

In the paragraphs that are the subject of this motion, Plaintiff requests civil penalties under the Song-Beverly Act. As Defendant maintains, Code of Civil Procedure section 871.24 ("Section 871.24") requires a plaintiff seeking civil penalties under the Song-Beverly Act to comply with specific pre-suit notice and vehicle retention requirements. Specifically, Section 871.24 mandates that at least 30 days prior to commencing an action for civil penalties under the Song-Beverly Act, the plaintiff "shall" notify the manufacturer, in writing, of his name, the vehicle's identification number ("VIN"), a summary of the repair history, and a demand for restitution or replacement of the vehicle. (Code Civ. Proc., § 871.24, subs. (a).) At the time the notice is sent, the plaintiff must have possession of the vehicle. (Code Civ. Proc., § 871.24, subd. (c).)

In the Complaint, Plaintiff requests civil penalties, but fails to plead compliance with the aforementioned requirements. When pre-suit notice or other conditions precedent are required by statute, a plaintiff must plead that he performed all required conditions. (See, e.g., *Caliber Bodyworks, Inc. v. Superior Court* (2005) 134 Cal.App.4th 365, 381-382 [interpreting similar statutory framework according to its plain language and holding that failure to plead compliance as to claim seeking civil penalties was fatal to those claims].) In his opposition, Plaintiff urges that the Court can "reasonably infer" that he complied with the pre-notice requirement based on his allegation that he requested a buyback from Defendant on August 28, 2025. (See Complaint, ¶ 24.) The Court disagrees. While a general allegation of compliance with statutory conditions is generally adequate at the pleading stage (see, e.g., *Perez v. Golden Empire Transit Dist.* (2012) 209 Cal.App.4th 1228, 1236-1237), that is not what Plaintiff has done in the Complaint, and him requesting a buyback does not necessarily equate to *actual* compliance with the requirements of Section 871.24, subdivision (a). Consequently, Defendant's motion to strike is GRANTED WITH 10 DAY' LEAVE TO AMEND.

Moving party shall prepare and submit the final order, accompanied by the necessary Form EFS-020 within 5 days of the date of the hearing.

- oo0oo -

Calendar Line 7

Case Name: *Paredes* et al. *v. Ford Motor Company et al.*
Case No.: 25CV478111

I. BACKGROUND

On November 11, 2022, Plaintiffs Victor M. Paredes and Alma L. Paredes ("Plaintiffs") purchased a 2022 Ford Mustang Mach-E, ("Subject Vehicle") from The Ford Store Morgan Hill ("Defendant"). (Complaint at ¶ 7.) Plaintiffs delivered the Subject Vehicle to Defendant for substantial repair on at least one occasion. (*Id.* at ¶ 47.) Plaintiffs allege that Defendant "breached its duty to Plaintiffs to use ordinary care and skill by failing to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards." (*Id.* at ¶ 49.) On October 20, 2025, Plaintiffs filed suit against Defendant and Ford Motor Company for violation of statutory obligations, namely the Song-Beverly Act. Plaintiffs bring the sole cause of action for negligent repair against Defendant the Ford Store Morgan Hill.

Defendant Ford Store Morgan Hill moves to compel arbitration of this action pursuant to the Retail Installment Sales Contract ("RISC"). Defendant argues the Arbitration Provision in the RISC is governed by the Federal Arbitration Act ("FAA") and California Arbitration Act ("CAA"). Defendant maintains it has not waived its right to arbitrate and no other grounds exist for revocation of the agreement. Having reviewed the language of the Arbitration Provision and the circumstances of its execution, the Court concludes that the motion should be granted.

II. LEGAL STANDARD

Defendant maintains that the FAA governs the Arbitration Provision based on the language itself and because the agreement affects interstate commerce. (Mtn. to Compel Arbitration at pp. 6:24-7:1.) The Arbitration Provision states "[a]ny arbitration under this Arbitration Provision shall be governed by the Federal Arbitration Act (9 U.S.C. §§ 1 et seq.) and not by any state law concerning arbitration." (Declaration of Trina M. Clayton ["Clayton Decl."], Ex. A.) Under the FAA, the court's role is limited to determining "(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue." (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) To determine "whether a valid contract to arbitrate exists," courts apply "ordinary state law principles that govern contract formation." (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; see also *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

Alternatively, the CAA governs the Arbitration Provision. Code of Civil Procedure section 1281.2 provides:

> On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy in that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: [¶] The right to